

A FRAMEWORK IN CHAPTERS

Chapter Thirteen

Retributivism

*The system that responds to harm
with more harm*

Retributivism is the system that responds to harm with more harm, enforces punishment as the only legitimate response to harm, and removes the option of restoration and healing. Nobody denies that rapists, paedophiles, or murderers cause harm. The abolitionist position is that restoration should be attempted first, and only when resisted should coercive measure be used — never as spectacle. This chapter runs it through the five domains.

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CHAPTER 13 OF AN ONGOING FRAMEWORK

Retributivism

Retributivism is the twelfth Fundamental Matrix. It is the system that responds to harm with more harm. The framework's own outline, from Chapter 1, is clear: nobody denies that rapists harm people, that paedophiles harm children, or that murder is devastating. The abolitionist position is that restoration and healing should be attempted first, and only when restoration is resisted should coercive measure be used — and even then, never as spectacle.

The outline is equally clear that the vast majority of people who end up in prisons or getting lynched have not actually done anything warranting the destruction of their lives. Retributivism overlaps with State Sovereignty (which supplies the prison infrastructure) and with Rankism (which supplies the guard/prisoner hierarchy). The framework separates them so that the retributive logic specifically can be studied and dismantled.

A note on method. The Interpersonal, Disciplinary, and Structural sections take the naive approach — each triad described as if happening for the first time, with no networks, residues, or Canon referenced. The Hegemonic Domain section is where Canon and Practice finally enter the picture.

READING NOTE

Same convention as Chapters 1 through 12. Every paragraph is written to be tweetable. Where you see literal blanks (____), the framework is asking you to write yourself into it. This chapter's blanks may be difficult: many Nigerians have been on both sides of the retributive triad — as subjects of the police, as witnesses to mob violence, as family members of the imprisoned, and as people who have called for 'justice' meaning punishment.

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SECTION 1

1. Definition: What Retributivism Extracts, Enforces, and Removes

Retributivism is the system that responds to harm with more harm, enforces punishment as the only legitimate response to harm, and removes the option of restoration and healing. The theoretical foundations draw on Ruth Wilson Gilmore's *Golden Gulag* (2007), which defined the prison as a site of surplus population management rather than justice. Gilmore defined racism — and by extension any oppressive system — as 'the state-sanctioned or extralegal production and exploitation of group-differentiated vulnerability to premature death.'

Angela Davis's *Are Prisons Obsolete?* (2003) supplied the foundational abolitionist text, arguing that the prison is not a natural feature of modern society but a historical invention that can be dismantled. Michelle Alexander's *The New Jim Crow* (2010) showed how the US prison system functions as racialised social control. Mariame Kaba's *We Do This Till We Free Us* (2021) and Derecka Purnell's *Becoming Abolitionists* (2021) supplied the contemporary abolitionist vocabulary.

Alex Vitale's *The End of Policing* (2017) extended the analysis to the police, showing that policing as an institution is designed to manage marginalised populations rather than to prevent harm. For the restorative alternative, Howard Zehr's *Changing Lenses* (1990) and John Braithwaite's *Restorative Justice and Responsive Regulation* (2002) supply the theoretical framework. Nils Christie's *Limits to Pain* (1981) supplied the foundational critique of the retributive paradigm.

Michel Foucault's *Discipline and Punish* (1975) traced the historical shift from spectacular punishment (the scaffold, the torture) to the carceral (the prison, the surveillance). Cesare Beccaria's *On Crimes and Punishments* (1764) supplied the Enlightenment critique of torture and the death penalty. Victor Hugo's *Les Misérables* (1862) supplied the literary critique, showing how the retributive system destroys the person it claims to correct.

1.1 What Retributivism Extracts

Retributivism extracts eight things. First, the **prisoner's liberty**: the physical confinement that removes the person from their family, their community, and their life. Second, the **prisoner's time**: the years, decades, and lifetimes spent in confinement, time that cannot be recovered.

Third, the **prisoner's body for labour**: the work the prisoner performs in the prison, often unpaid or paid at slave wages, producing goods for the state or for private contractors. Fourth, the **prisoner's future**: the criminal record that bars employment, housing, and social participation after release. Fifth, the **family's stability**: the income lost, the children parentless, the marriages dissolved.

Sixth, the **community's cohesion**: the removal of members from the community, the concentration of criminalised populations in specific neighbourhoods, the erosion of trust. Seventh, the **public's tax revenue**: the billions spent on prisons, police, and courts that could be spent on education, healthcare, and housing. Eighth, the **survivor's healing**: the promise that punishment will heal the survivor, which it never does, because punishment does not heal.

1.2 What Retributivism Enforces

Retributivism enforces seven standards. First, **prison as the only response to harm**: the assumption that harm must be met with imprisonment, and that alternatives are 'soft on crime.' Second, the **death penalty as the only response to murder**: the assumption that murder must be met with state killing, despite the absence of evidence that the death penalty deters.

Third, **amputation as the only response to theft in Sharia contexts**: the assumption that theft must be met with bodily mutilation, codified in the Sharia Penal Codes of twelve northern Nigerian states.

Fourth, the **criminal record as permanent stigma**: the assumption that a conviction marks the person for life, barring employment, housing, and social participation.

Fifth, the **sex offender registry as permanent exclusion**: the assumption that certain offences mark the person for permanent social death. Sixth, the **lynching as communal purification**: the assumption that the community has the right to kill the suspected offender without trial. Seventh, the **banishment as community cleansing**: the assumption that the community can expel the offender, who becomes someone else's problem.

1.3 What Options Retributivism Removes

Concretely, Retributivism removes the option of restorative justice — the practice of bringing the survivor and the offender together, with community support, to address the harm, repair the relationship, and prevent recurrence. Restorative justice has been shown to produce higher survivor satisfaction and lower recidivism than the retributive system. But it is not available as a default in the Nigerian criminal justice system.

It removes the option of transformative justice — the practice of addressing the structural conditions that produced the harm, not just the individual act. Transformative justice asks why the harm happened, not just who did it. It is not available at all in the Nigerian criminal justice system. It removes the option of community accountability — the practice of the community taking responsibility for both the survivor and the offender, rather than delegating to the state.

It removes the option of survivor-centred healing — the practice of asking what the survivor needs to heal, rather than assuming that punishment will heal them. It removes the option of the rehabilitation of the offender — the practice of addressing the causes of the offending behaviour rather than punishing the behaviour. It removes the option of the reintegration of the released prisoner — the criminal record bars employment and housing, making recidivism the rational option.

It removes the option of decriminalising poverty — the vast majority of Nigerian prisoners are poor, imprisoned for crimes that the rich commit with impunity. It removes the option of decriminalising mental illness — the mentally ill are criminalised rather than treated (overlapping with Somatic Normativity, Chapter 12). It removes the option of decriminalising addiction, sex work, and homosexuality (overlapping with Cisheteropatriarchy, Chapter 5). Each removal is enforced by the criminal code, by the police, by the court, and by the triads below.

SECTION 2 · NAIVE APPROACH

2. The Interpersonal Domain

The Interpersonal Domain contains five enforcement triads and five extraction triads. Each is described here as if happening for the first time — no networks, no residues, no Canon. Just the act, the conforming subject, the complicit witness, and (for extraction triads) the Non-Extracting Beneficiary.

3.1 Enforcement Triad: Prison as Only Response Standard

The enforcer is the person or institution that demands imprisonment as the response to harm. The police officer who arrests. The prosecutor who charges. The judge who sentences. The legislator who criminalises. The public that demands ‘tough on crime.’ The enforcement is performed by the arrest, the charge, the sentence, the legislation, or the public demand.

The subject conforms by being imprisoned, by demanding imprisonment of others, or by not questioning the prison as the default. The conforming act is the acceptance of prison as natural — the subject does not ask whether an alternative is available, because the alternative is not visible.

The options the subject loses are concrete. The person who is arrested for a minor offence loses the option to restorative justice, which would address the harm without confinement. The family that loses a member to prison loses the option to family stability. The community that loses a member to prison loses the option to community cohesion. The public that pays for the prison loses the option to spend the money on education, healthcare, or housing.

The witness is the person who watches the arrest, the charge, or the sentence and says nothing, or who themselves demand ‘tough on crime’ and so model compliance. The Non-Extracting Beneficiary is the prison contractor who profits from the prison’s construction and maintenance without personally commanding the imprisonment.

3.2 Enforcement Triad: Punishment as Justice Standard

The enforcer is the person or institution that demands punishment as the definition of justice. The court that sentences. The public that demands ‘justice’ meaning punishment. The politician who campaigns on ‘tough on crime.’ The media that frames the sentence as ‘justice served.’ The enforcement is performed by the sentence, by the public demand, by the political campaign, or by the media framing.

The subject conforms by accepting punishment as justice. The conforming act is the acceptance itself — the subject does not ask whether justice might mean restoration, healing, or transformation, because the equation of justice with punishment is so deep that the alternative is invisible.

The options the subject loses are concrete. The survivor who is told that punishment will heal them loses the option to actual healing, which punishment does not provide. The offender who is punished loses the option to rehabilitation, which punishment does not provide. The community that demands punishment loses the option to restoration, which punishment does not provide.

The witness is the person who watches the punishment and says ‘justice is served,’ or who themselves demand punishment and so model compliance. The Non-Extracting Beneficiary is the media that profits from the punishment narrative without personally commanding the punishment.

3.3 Enforcement Triad: Criminal Record as Permanent Stigma Standard

The enforcer is the person or institution that demands the criminal record function as permanent exclusion. The employer who refuses to hire the convicted person. The landlord who refuses to rent. The school that refuses to admit. The immigration officer who refuses entry. The bank that refuses credit. The enforcement is performed by the background check, by the refusal, by the policy, or by the social practice.

The subject conforms by being excluded — the released prisoner who cannot find work, cannot find housing, cannot access credit, cannot travel. The conforming act is the exclusion itself — the subject accepts the exclusion as the natural consequence of the conviction.

The options the subject loses are concrete. The released prisoner who cannot find work loses the option to economic participation, which is to say, loses the option to a life outside crime. The released prisoner who cannot find housing loses the option to shelter. The released prisoner who cannot access credit loses the option to economic mobility. The loss compounds across the life, making recidivism the rational option.

The witness is the person who watches the exclusion and says nothing, or who themselves refuse to hire or rent to the convicted person. The Non-Extracting Beneficiary is the employer who gains a compliant workforce from the threat of criminal records without personally commanding the exclusion.

3.4 Enforcement Triad: Spectacle of Punishment Standard

The enforcer is the person or institution that demands punishment be visible. The mob that lynches. The state that executes publicly. The court that sentences publicly. The media that broadcasts the sentence. The social media that circulates the mob killing. The enforcement is performed by the lynching, the execution, the public sentencing, the broadcast, or the circulation.

The subject conforms by watching, by participating, or by not intervening. The conforming act is the spectatorship itself — the subject watches the punishment, absorbs the message, and internalises the fear. The spectacle is the enforcement; the watching is the conformity.

The options the subject loses are concrete. The person who is lynched loses the option to life, which is to say, loses everything. The person who watches the lynching loses the option to a community that does not kill its members. The person who participates in the lynching loses the option to a self that is not a killer. The community that hosts the lynching loses the option to cohesion, because the lynching teaches that violence is the resolution.

The witness is the person who watches the spectacle and does not intervene, or who themselves participate. The Non-Extracting Beneficiary is the authority that benefits from the spectacle's deterrent effect (real or imagined) without personally commanding the spectacle.

3.5 Enforcement Triad: Retaliation as Balance Standard

The enforcer is the person who demands retaliation as the restoration of balance. The family member who avenges. the community that retaliates. The gang that retaliates. The nation that retaliates. The enforcement is performed by the revenge killing, the retaliatory raid, the counter-attack, or the retaliatory prosecution.

The subject conforms by retaliating, by accepting retaliation as natural, or by not questioning the cycle. The conforming act is the retaliation itself — the subject performs the equivalent harm, believes the harm restores balance, and does not ask whether the cycle will end.

The options the subject loses are concrete. The family that retaliates loses the option to the cycle ending, which is to say, loses the option to peace. The community that retaliates loses the option to cohesion, because retaliation produces counter-retaliation. The nation that retaliates loses the option to stability, because retaliation produces insurgency, terrorism, and war.

The witness is the person who watches the retaliation and says nothing, or who themselves retaliate. The Non-Extracting Beneficiary is the authority that benefits from the retaliation's distraction from structural causes without personally commanding the retaliation.

3.6 Extraction Triad: Prisoner's Liberty

The extractor is the state that requires the prisoner's liberty. The court that sentences. The prison that holds. The police that arrest. The law that criminalises. The extraction is performed by the arrest, the sentence, the confinement, or the law.

The subject conforms by being confined. What is extracted is the liberty itself — the physical freedom to move, to associate, to work, to live. The extraction transfers the liberty from the prisoner to the state, with the prisoner reduced to a body in a cell.

The options the subject loses are concrete. The prisoner who is confined loses the option to family life, which is to say, loses the option to parenthood, to partnership, to kinship. The prisoner loses the option to work, which is to say, loses the option to economic participation. The prisoner loses the option to political participation, which is to say, loses the option to citizenship. The loss compounds across the years of confinement.

The witness is the person who knows of the confinement and does not intervene, or who themselves demand confinement. The Non-Extracting Beneficiary is the prison-industrial complex — the contractors, the suppliers, the guards — who profit from the confinement without personally commanding it.

3.7 Extraction Triad: Prisoner's Time

The extractor is the state that requires the prisoner's time. The court that sentences to years. The law that mandates minimum sentences. The parole board that delays release. The pre-trial detention that holds the unconvicted for years. The extraction is performed by the sentence, by the law, by the parole decision, or by the pre-trial detention.

The subject conforms by waiting. What is extracted is the time itself — the years, decades, and lifetimes spent in confinement. The extraction is silent. There is no envelope, no tribute. There is only the prisoner's lost year, lost decade, lost life.

The options the subject loses are concrete. The prisoner who serves ten years loses the option to the decade of their twenties or thirties, which is to say, loses the option to the formative years of their adult life. The pre-trial detainee who waits five years for trial loses the option to the five years of their life, even though they have not been convicted. 75-80% of the Nigerian prison population are pre-trial detainees.

The witness is the person who knows of the time extraction and does not intervene. The Non-Extracting Beneficiary is the state that uses the pre-trial detention as a form of punishment without conviction, avoiding the trouble of a trial.

3.8 Extraction Triad: Prisoner's Body for Labour

The extractor is the state or contractor that requires the prisoner's labour. The prison that requires the prisoner to clean, cook, and maintain. The state that requires the prisoner to work on public projects. The private contractor that uses prison labour for production. The extraction is performed by the prison rule, by the state policy, or by the contractor arrangement.

The subject conforms by working. What is extracted is the labour itself — the physical and cognitive work the prisoner performs. The extraction is performed at slave wages or unpaid, with the prisoner having no option to refuse.

The options the subject loses are concrete. The prisoner who works for slave wages loses the option to economic participation at fair wages, which is to say, loses the option to savings, to support for family, to preparation for release. The prisoner who works unpaid loses the option to the value of their labour.

The witness is the person who knows of the labour extraction and does not intervene. The Non-Extracting Beneficiary is the consumer who buys the product of prison labour without knowing its origin.

3.9 Extraction Triad: Prisoner's Future

The extractor is the system that requires the prisoner's future be forfeit. The criminal record that bars employment. The social stigma that bars social participation. The family rupture that bars family life. The psychological damage that bars mental health. The extraction is performed by the record, by the stigma, by the rupture, or by the damage.

The subject conforms by losing the future. What is extracted is the future itself — the possibility of a life after prison, the possibility of reintegration, the possibility of transformation. The extraction is permanent; the criminal record does not expire.

The options the subject loses are concrete. The released prisoner who cannot find work loses the option to economic life. The released prisoner who is shunned by family loses the option to family life. The released prisoner who is traumatised by prison loses the option to mental health. The released prisoner who is stigmatised by the community loses the option to community life. The loss compounds across the rest of the life.

The witness is the person who knows of the future extraction and does not intervene. The Non-Extracting Beneficiary is the employer who gains a compliant workforce from the threat of criminal records without personally commanding the exclusion.

3.10 Extraction Triad: Family's Stability

The extractor is the system that requires the family's stability be sacrificed. The imprisonment that removes the parent. The imprisonment that removes the income-earner. The imprisonment that removes the partner. The imprisonment that removes the child. The extraction is performed by the imprisonment, by the distance, by the cost of prison visits, or by the social stigma.

The subject conforms by losing the stability. What is extracted is the stability itself — the income, the parenting, the partnership, the household management. The extraction transfers the cost of imprisonment from the state to the family, with the family paying in income loss, child-rearing burden, and social stigma.

The options the subject loses are concrete. The partner who loses the income-earner loses the option to economic stability. The child who loses the parent loses the option to childhood. The parent who loses the child to prison loses the option to parenthood. The family that pays for prison visits loses the option to savings. The loss compounds across generations — the child of the imprisoned parent is more likely to be imprisoned themselves.

The witness is the person who knows of the family extraction and does not intervene. The Non-Extracting Beneficiary is the state that avoids the cost of supporting the family left behind, with the family bearing the cost privately.

Nascent forms of this system include: 'Lock them up', 'Throw away the key', 'They deserve what they get', 'An eye for an eye', 'Tough on crime', 'Law and order', 'Justice' as punishment, 'Teach them a

lesson', 'Make an example of them', 'String them up', 'Burn them alive', 'Justice for [victim]', The police officer who shoots first, The religious leader who demands divine punishment, The social media mob that destroys a reputation, The criminal record that bars employment, The sex offender registry that bars housing, The death penalty as 'closure', The amputation as 'deterrence', The stoning as 'divine justice', The banishment as 'cleansing', The honour killing as 'justice', The revenge as 'justice', The retaliatory violence as 'balance'.

SECTION 3 · NAIVE APPROACH

3. The Disciplinary Domain

When the ten triads above link into networks, Retributivism scales. The link can be hierarchical (the enforcer at one level is the subject at the level above) or community-based (the witness at one triad becomes the enforcer at another). Both forms are visible in every Nigerian institution that deals with crime and punishment.

4.1 Disciplinary Hierarchy — Nested Stars

A Disciplinary Hierarchy is a chain of nested triads. The enforcer at one level is the subject at the level above. Each middle position is simultaneously subject above and enforcer below. Retributivism spreads through this form in every Nigerian institution that organises punishment.

Peak Triad-Node

At the peak is the triad where the highest punishment authority enforces on the layer below. In the criminal justice hierarchy, the peak is the Chief Justice of Nigeria enforcing on the Court of Appeal, which enforces on the High Court, which enforces on the Magistrate Court, which enforces on the police station, which enforces on the prison. In the police hierarchy, the peak is the Inspector-General of Police enforcing on Assistant Inspectors-General, who enforce on Commissioners, who enforce on DPOs, who enforce on officers, who enforce on the citizen suspect.

In the prison hierarchy, the peak is the Controller-General of the Nigerian Correctional Service enforcing on state comptrollers, who enforce on prison wardens, who enforce on deputy wardens, who enforce on officers, who enforce on prisoners — with the prisoner at the absolute bottom of every hierarchy they enter. In the Sharia court hierarchy, the peak is the Grand Khadi enforcing on Khadis, who enforce on registrars, who enforce on the accused. In the EFCC hierarchy, the peak is the Chairman enforcing on directors, who enforce on investigators, who enforce on the accused.

Middle Triad-Nodes

The middle nodes are where the chain's character is clearest. The High Court judge who defers to the Court of Appeal in the morning demands deference from the Magistrate in the afternoon. The Commissioner of Police who defers to the IGP in the morning demands deference from the DPO in the afternoon. The prison warden who defers to the state comptroller in the morning demands deference from the officer in the afternoon, who demands deference from the prisoner.

The middle is where Retributivism reproduces. The police officer who is enforced on by the DPO enforces on the citizen suspect. The prison officer who is enforced on by the warden enforces on the prisoner. The middle position teaches the subject to enforce the retributive standard on those below. By the time the officer becomes a DPO, they have been disciplined by Retributivism for decades.

Bottom Triad-Node

At the bottom is the triad where the lowest-ranked punishment enforcer enforces on the most vulnerable. The police Constable enforcing on the citizen suspect. The prison officer enforcing on the prisoner. The court bailiff enforcing on the accused. The mob enforcer enforcing on the lynched. The bottom is where the system's violence is most concentrated.

The bottom node is also where the hierarchy meets the community form. The police Constable who enforces on the citizen suspect is simultaneously the enforcer in the neighbourhood, where they enforce Retributivism on the community. The prison officer who enforces on the prisoner is simultaneously the enforcer in their own household, where they enforce Retributivism on their family. The intersection of hierarchy and community is what makes Retributivism inescapable.

4.2 Disciplinary Community — Distributed Network

A Disciplinary Community is a distributed network. There is no peak, no chain of command. There is only circulation. The witness of one Retributivism triad becomes the enforcer, subject, or witness of another. Retributivism spreads laterally through any person who has witnessed punishment enforcement without dissenting.

The Social Media Call-Out Networks

The social media call-out networks circulate Retributivism laterally across the Nigerian digital public. The Twitter user who calls out the alleged offender. The Instagram user who shares the call-out. The Facebook user who joins the pile-on. The networks reproduce the punishment-as-justice and criminal-record-as-permanent-stigma triads across the digital public, with no central command issuing the demand.

The Vigilante Group Networks

The vigilante group networks circulate Retributivism laterally across the Nigerian community. The Bakassi Boys in the South-East. The Oodua People's Congress (OPC) in the South-West. The Hisbah in the North. Each circulates the spectacle-of-punishment triad across its region, with the vigilante group performing the punishment that the state cannot or will not perform.

The Neighbourhood Watch Networks

The neighbourhood watch networks circulate Retributivism laterally across the Nigerian neighbourhood. The landlord association that demands the eviction of the suspected criminal. The street committee that reports the suspect to the police. The networks reproduce the prison-as-only-response triad across the neighbourhood.

The Family Revenge Networks

The family revenge networks circulate Retributivism laterally across the Nigerian family. The family that avenges the harm to its member. The extended family that coordinates the retaliation. The networks reproduce the retaliation-as-balance triad across the family, with the cycle of revenge continuing across generations.

The Religious Punishment Networks

The religious punishment networks circulate Retributivism laterally across the Nigerian religious community. The church that disciplines the member. The mosque that punishes the transgressor. The networks reproduce the punishment-as-justice triad across the religious community, with the punishment framed as divine requirement.

The School Punishment Networks

The school punishment networks circulate Retributivism laterally across the Nigerian school. The teacher who flogs the student. The principal who expels the student. The networks reproduce the punishment-as-justice triad across the school, with the punishment framed as pedagogy (overlapping with Adultism, Chapter 3).

SECTION 4 · NAIVE APPROACH

4. The Structural Domain

Run the Ship of Theseus test. When the original colonial officers and original judges are dead and replaced, when the networks are disbanded and reform, what is consistent? What outlives both individuals and groups? What forces new Nigerians to re-form into the same patterns — not because anyone instructs them to, but because the residue makes any other pattern costly or invisible?

Retributivism leaves all three residues. It is one of the most total systems in the framework because the criminal code reaches into every Nigerian life. Almost every Nigerian institution carries Bureaucracy, Stratification, and Classification from Retributivism simultaneously.

5.1 Bureaucracy — Enduring Rules and Procedures

Retributivism's bureaucracy is the codified criminal justice structure. The Criminal Code Act 1916, inherited from English colonial law, governs criminal offences in southern Nigeria. The Penal Code, derived from the Sudanese penal code (itself derived from Indian penal code, itself derived from English law), governs criminal offences in northern Nigeria. The Administration of Criminal Justice Act 2015 codifies the procedure, with amendments in 2019.

The Nigerian Correctional Service Act 2019 renamed prisons to 'correctional services' without changing the retributive logic. The Act was presented as reform, but the prison remains a site of confinement, not correction. The death penalty is still on the books in all 36 states, with a moratorium in practice since 2002, though executions still occur — the last known execution was in Edo State in 2016, and death sentences continue to be handed down. Over 3,000 people are on death row in Nigeria.

The Sharia Penal Codes in twelve northern states, beginning with Zamfara in 2000, codified amputation for theft, flogging for fornication, and stoning for adultery (though stoning has not been carried out). The EFCC Act 2004 and the ICPC Act 2000 codified the economic and financial crimes bureaucracy. The NDLEA Act codified the drug law bureaucracy. The bail system, though codified, functions as extraction: the poor cannot afford bail and remain in pre-trial detention for years.

The pre-trial detention system is the bureaucracy's most retributive feature: 75-80% of the Nigerian prison population are pre-trial detainees who have not been convicted of anything. They are held because they cannot afford bail, because the court system is too slow to try them, or because the police cannot produce the case file. The criminal record system, though not centrally codified, functions as permanent exclusion through police records and court records. The original 1916 authors are dead. The bureaucracy lives.

5.2 Stratification — Enduring Zero-Sum Rankings

Retributivism's stratification is the daily experience of punishment rank in every institutional encounter. **Free/imprisoned** — the free person ranks above the imprisoned in every domain of life. **Guilt/innocent** — though the vast majority are pre-trial and unconvicted, the accused is treated as guilty until proven innocent, which in practice means guilty until released.

Criminal/law-abiding — the criminalised person ranks below the law-abiding in employment, housing, and social standing. **Offender/victim** — the offender ranks below the victim in moral standing, though the framework notes that the same person can be both, and that the binary erases the complexity. **Punished/forgiven** — the punished person ranks below the forgiven, because the punished carries the stigma while the forgiven does not.

Stigmatised/clean — the person with a criminal record ranks below the person without, in employment, housing, and social participation. The ranking is in the air; it does not need to be announced. The Nigerian court enforces stratification without anyone issuing an order: the judge is free, the accused is confined; the judge is powerful, the accused is powerless; the judge is credible, the accused is suspect.

5.3 Classification — Enduring Categorical Divisions

Retributivism's classification is the set of categorical names that organise every Nigerian into punishment categories. **Criminal** and **law-abiding** — the universal pair, with law-abiding as the default and criminal as the deviant. **Guilt** and **innocent** — the legal pair, with innocent as the default and guilt as the proven deviation.

Offender and **victim** — the harm pair, with victim as the innocent and offender as the guilty.

Prisoner and **free** — the confinement pair, with free as the default and prisoner as the excluded.

Felon and **misdemeanant** — the severity pair, with misdemeanor as the lesser deviation and felon as the greater.

Death-row and **general population** — the sentence pair, with general population as the living and death-row as the dying. **Sex offender** and **general prisoner** — the offence pair, with general prisoner as the ordinary criminal and sex offender as the permanently excluded. **Pre-trial** and **convicted** — the legal-status pair, with convicted as the sentenced and pre-trial as the unsentenced but still confined. The classification does the work before any individual enforcer shows up. A person walking into a Nigerian police station as a suspect is already classified; the officer does not need to demand submission because the category 'suspect' already carries the submission.

SECTION 5

5. The Hegemonic Domain: The Ascension Ritual

Is Retributivism ascended? Yes on all three counts. It produces all three structural residues including Stratification (so Internalised Domination applies). It has working Canon and Practice mechanisms. The vast majority of Nigerians cannot imagine a society without prisons, without police, without the death penalty, without the criminal record — despite the fact that pre-colonial Nigerian societies had no prisons as such, and the fact that the prison was introduced by the colonial state.

6.1 Canon — Rewriting History

Canon is the present belief that the retributive system has always been so. The origination of the structural residues — the Criminal Code 1916, the prison system, the death penalty, the police — has been forgotten. The average Nigerian now takes the prison, the police, and the death penalty as natural, eternal, and without alternative.

What is forgotten? Pre-colonial Nigerian justice systems were more restorative. The Igbo oracle system that adjudicated disputes. The Yoruba council of elders (the Iwarefa, the Ogboni) that mediated harm. The Hausa emir's court that imposed compensation rather than imprisonment. The Tiv council of elders that addressed harm through community process. These systems were not utopian — they could be harsh, and they could be unjust — but they did not rely on the prison as the default response to harm.

Also forgotten: that the prison was introduced by the colonial state in 1861 with the establishment of the first prison in Lagos, following the British annexation. That the death penalty was inherited from English common law. That the Criminal Code Act 1916 was drafted by the colonial government to codify English criminal law for the colony. That pre-colonial Nigerian societies had no prisons as such — confinement was not the default response to harm.

Also forgotten: that the vast majority of those in Nigerian prisons are pre-trial detainees who have not been convicted of anything. 75-80% of the prison population are awaiting trial, many for years, because they cannot afford bail, because the court system is too slow, or because the police cannot produce the case file. The Canon presents the prison as the place where the guilty are punished. The history shows the prison as the place where the poor are confined without conviction.

Internalised Domination

Canon produces Internalised Domination because Retributivism produces Stratification. The prison official's entitlement to the prisoner's body is now natural, automatic, unquestionable. The officer who orders the prisoner to strip does not experience this as a demand. They experience it as the natural order. The police officer's entitlement to the citizen's liberty is natural. The judge's entitlement to the

defendant's future is natural. The mob's entitlement to the suspect's life is natural.

Internalised Authority

Canon produces Internalised Authority in the Retributivism enforcer regardless of personal material gain. The right to punish. The right to imprison. The right to execute. The right to lynch. The right to destroy reputation. Each is performed by ordinary Nigerians daily — the police officer who shoots the suspect, the judge who sentences the defendant, the mob that kills the alleged thief, the social media user who destroys the reputation. The right to enforce feels natural, automatic, and legitimate.

Internalised Oppression

Canon produces Internalised Oppression in the prisoner, the family, the released prisoner, and the survivor. The prisoner who believes they deserve punishment. The family that believes they deserve the shame. The released prisoner who believes they deserve the stigma. The survivor who believes that only punishment will heal them. The teaching is silent; it is in the air.

The deepest form of this is the subject who has absorbed Retributivism so thoroughly that they enforce it on themselves. The prisoner who says 'I deserve to be here' to explain why they do not appeal. The family who says 'we deserve the shame' to explain why they do not visit. The released prisoner who says 'I deserve the exclusion' to explain why they do not seek employment. The survivor who says 'I need them punished' to explain why they cannot heal without the sentence. The rebellion-capable subject has become the self-policing subject.

6.2 Practice — Rewriting Reality

Practice is the second mechanism of the Ascension Ritual. The interpersonal triad is repeated, again and again, until it becomes habit. The Retributivism enforcer forgets they can choose not to enforce. The prisoner forgets they can rebel. The witness forgets they can dissent. Pierre Bourdieu called this *habitus* — the sediment of repeated practice in the body.

Michel Foucault, in *Discipline and Punish* (1975), showed how the carceral logic spreads beyond the prison into the school, the factory, the hospital, and the barracks — each adopting the surveillance, the schedule, and the discipline of the prison. The Nigerian child who is flogged at school, the worker who is disciplined at the office, the patient who is managed at the hospital — each is undergoing Practice for Retributivism. The body learns. The mind stops questioning.

By the time the Nigerian child is twelve, the retributive logic is reflex. They know that harm is met with punishment. They know that the police are the first response. They know that the prison is the destination. They know that the criminal record is permanent. By adulthood, the Nigerian has performed the prison-as-only-response, punishment-as-justice, criminal-record-as-permanent-stigma, spectacle-of-punishment, and retaliation-as-balance triads so many thousands of times that the alternative — restorative justice, transformative justice, community accountability, survivor-centred healing — feels like a kind of amputation. The body has been trained. Practice has rewritten reality.

Death — Fast and Slow

Practice produces Death. Fast death in Retributivism is spectacular: the execution — Nigeria's last known execution was in 2016 in Edo State, though death sentences continue to be handed down and over 3,000 people are on death row. The police killing of the 'suspect' — the #EndSARS movement of October 2020 documented hundreds of extrajudicial killings by the Special Anti-Robbery Squad, with the Lekki toll gate shooting of 20 October 2020 as the paradigm.

The mob killing — the Aluu 4 in October 2012 in Port Harcourt, when four university students were stripped, beaten, and set on fire by a mob for alleged theft. The jungle justice cases that continue across Nigeria — the market thief who is stripped and beaten, the alleged witch who is set on fire, the suspected kidnapper who is lynched. The prison death from treatable conditions — tuberculosis, HIV, malnutrition, and overcrowding in Nigerian prisons where cells built for 30 hold 150, and where medical care is minimal.

The death-row execution that may resume if the moratorium is lifted. The death in custody from torture — the Amnesty International and Human Rights Watch reports documenting the use of torture in Nigerian police custody, with deaths in custody occurring regularly. Each fast death is the retributive logic at its most concentrated.

Slow death in Retributivism is quiet. Chronic stress of imprisonment — the prisoner who has not slept properly in years because the cell is too crowded, too noisy, too dangerous. Mental health collapse of the prisoner — the depression, the anxiety, the post-traumatic stress that imprisonment produces, with no mental health services available. The slow death of the family that loses a member to prison — the income lost, the children parentless, the marriages dissolved.

The slow death of the community that loses a member to the criminal justice system — the concentration of criminalised populations in specific neighbourhoods, the erosion of trust, the normalisation of absence. The slow erasure of the released prisoner from employment, housing, and social life — the criminal record that bars every door, making recidivism the rational option. The cumulative damage of prison conditions on the body — the malnutrition, the disease, the violence.

The mental health collapse of the prison officer who enforces — the officer who has internalised the demand to punish so deeply that their own mental health collapses under the weight. The survivor's healing that never comes because punishment does not heal — the survivor who was told that the sentence would bring closure, and who finds that the sentence brought nothing. The community's cohesion that never returns because punishment does not restore — the community that was told that the imprisonment would restore peace, and that finds that the imprisonment produced absence. None of these make the news. They are Retributivism's quiet tax.

Ruth Wilson Gilmore's definition applies: Retributivism produces group-differentiated vulnerability to premature death. The groups are the imprisoned, the pre-trial detained, the released prisoner, the family of the imprisoned, the community of the criminalised, the survivor who is denied healing, the prison officer who is denied mental health. The premature death is fast (execution, police killing, mob killing, prison death, custodial torture death) or slow (imprisonment stress, mental health collapse, family dissolution, community erosion, criminal record exclusion, prison condition damage, survivor's

unhealing, community's unrestoring). Every ascended matrix kills. Retributivism kills those whose relation to harm does not fit the punishment model.

SECTION 6

6. When Did Retributivism Rewrite History?

The framework's historical question: when did Retributivism rewrite history in popular Nigerian living memory, such that the average Nigerian cannot recall a time when its structural residue was not present? This is not a history of how Retributivism was built. It is a diagnosis of when the building was forgotten.

Pre-colonial Nigerian justice systems were more restorative. The Igbo oracle system that adjudicated disputes. The Yoruba council of elders that mediated harm. The Hausa emir's court that imposed compensation. The Tiv council of elders that addressed harm through community process. These systems were not utopian — they could be harsh, and they could be unjust — but they did not rely on the prison as the default response to harm. Confinement was not the default; compensation, mediation, and community process were.

Colonial codification imposed the retributive system. The first prison in Nigeria was established in Lagos in 1861, following the British annexation. The Criminal Code Act 1916 codified English criminal law for the colony, including the death penalty, the prison, and the criminal record. The colonial police force was established to enforce the colonial criminal law. The colonial court system was established to adjudicate under the colonial criminal law. Each was a political decision, not a natural development.

Post-independence replication continued the retributive system. The Nigerian Criminal Code retained the colonial criminal law. The Nigerian prison system retained the colonial prison infrastructure. The Nigerian police retained the colonial police structure. The Nigerian court retained the colonial court procedure. The Sharia Penal Codes of 2000-2002 added amputation and stoning to the retributive repertoire, but the underlying logic was the same: punishment as the response to harm.

The tipping point in popular living memory: **circa 1861 for the colonial introduction of the prison; circa 1916 for the Criminal Code Act that codified retributive logic.** For Nigerians born after 1960 — the post-independence generation — Retributivism has 'always been' in its current form. They cannot recall a time when the prison was not the response to harm, when the police were not the first call, when the death penalty was not on the books.

The pre-retributivism generation (born ~1860s-1880s) was the last to have living memory of pre-colonial restorative justice. By the 1916 Criminal Code, that generation had been displaced from policy-making by the colonial administration, and the retributive system had become the natural order. The question 'is the prison natural?' had stopped being asked in popular memory by the 1920s. The question 'is the death penalty natural?' stopped being asked by the 1930s. The question 'is the criminal record natural?' stopped being asked by the 1960s. The question 'is pre-trial detention natural?' stopped being asked by the 1970s, though the pre-trial detention population has grown dramatically since.

SECTION 7

7. Fill in the Blank: A Self-Examination

The framework asks two questions of every subject of every ascended matrix. The blanks are for you. They are not rhetorical. The point of the framework is not to understand Retributivism in the abstract. It is to locate yourself inside it, so that the next time the triad assembles around you — or around someone whose relation to harm does not fit the punishment model — you can see it.

Question 1: When did Retributivism rewrite your reality?

When did the system teach you that you could not rebel? The moment was: _____. The year was: _____. The person or institution who first made you feel that challenging the punishment was impossible was: _____. The place was: _____. What you wanted to say but did not was: _____. What you did instead was: _____. What you told yourself about why you did not say it was: _____. The punishment you assumed was just in that moment was: _____. The form of address you used was: _____. What you lost, in that moment, that you have not got back since, was: _____. The form of Retributivism at the centre of the moment (prison, death penalty, mob justice, criminal record, police violence, retaliation) was: _____.

Question 2: How is Retributivism causing your Death?

How is the system shortening your life right now? The form of Death I am most afraid of from Retributivism is (fast/slow): _____. The specific way it is happening in my body is: _____. (For example: the chronic stress from years of navigating the criminal justice system; the insomnia from years of fear of the police; the loss of self from years of being told I deserve punishment; the breakdown I had in 20__ that I have never fully recovered from; the family member I lost to prison; the community member I lost to police violence; the friend I lost to mob justice; the survivor's healing that never came because punishment does not heal; the community's cohesion that never returned because punishment does not restore; the criminal record that bars every door; the pre-trial detention that held me for years without conviction.) The matrix's name for what is happening to me is: _____. My own name for it is: _____.

If you filled in the blanks honestly, you have just located yourself inside Retributivism. The next time the triad assembles — the next time the police are called, the next time the prison is demanded, the next time the mob gathers, the next time 'justice' is used to mean punishment — you will be able to see the system moving through you. That sight is the beginning of abolition. And if you are now the enforcer in the triad — the police officer, the judge, the prosecutor, the mob participant, the social media caller-outer — the sight is also the beginning of your refusal to enforce.

SECTION 8

8. Endnotes & References

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Coming Next

Chapter 14 will take up Amatonormativity — the compulsory couple-form. The framework's outline names it as the system that enforces the couple-form on everyone, and extracts deference, stability,

and legitimacy from the single, the aromantic, and the non-coupled. Amatonormativity overlaps with Cisheteropatriarchy (Chapter 5, which enforces the heterosexual couple-form) and with Kinship Normativity (Chapter 4, which enforces the blood-and-marriage family). The framework separates Amatonormativity so that the couple-form logic specifically can be studied and dismantled.

If you are reading this chapter as part of the framework in progress, the order continues: Chapter 15 is Compulsory Existence / Suicidism, Chapter 16 is Meritism / The Significant, Chapter 17 is Ethnic Majoritarianism, and so on through the Fundamental Matrices. Each chapter follows the same template established in Chapters 2 through 13. The naive approach in the first three domains (or its waiver, as in Chapter 11). The Ascension Ritual in the fourth. The historical memory trace. The fill-in-the-blank. The endnotes. The pattern is now set.